

25STCV22143 25STCV22143

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-07-27

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Case Number: 25STCV22143 Hearing Date: July 27, 2026 Dept: 508

Superior Court of California

County of Los Angeles

Department

508

ARMANDO CONTRERAS,

Plaintiff,

vs.

MONIQUE ANNETTE SHEPS, et

al.,

Defendants.

Case No.:

25STCV22143

Hearing Date:

July 27, 2026

Hearing

Time: 10:00 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANTS MONIQUE

ANNETTE SHEPS, LAURIE M. SHEPS AND MICHAEL SHEPS' DEMURRER TO PLAINTIFF'S COMPLAINT

DEFENDANTS

MONIQUE ANNETTE SHEPS, LAURIE M. SHEPS AND MICHAEL SHEPS' MOTION TO STRIKE CERTAIN CAUSES OF ACTION, CLAIMS FOR PUNITIVE DAMAGES AND ATTORNEY'S FEES

Background

On November 13, 2025, Plaintiff Armando Contreras ("Plaintiff") filed this action against Defendants Monique Annette Sheps, Laurie M. Sheps, and Michael Sheps (collectively, "Defendants"), alleging seventeen causes of action for (1) negligence, (2) intentional infliction of emotional distress, (3) negligent infliction of emotional distress, (4) negligence per se, (5) assault, (6) battery, (7) intentional misrepresentation, (8) negligent misrepresentation, (9) reckless endangerment, (10) Business & Professions Code § 17200, et seq., (11) common law negligent entrustment of a vehicle, (12) strict liability, (13) fraud, (14) breach of oral contract, (15) civil conspiracy to commit insurance fraud, (16) breach of covenant of good faith and fair dealing, (17) statutory negligent entrustment of a vehicle

Defendants now demur to the complaint in its entirety and move to strike portions of the complaint. Plaintiff opposes. Defendants replied.

Discussion

As an initial matter, Defendants' counsel submits a declaration in support of both the demurrer and motion to strike, which appear to convey the same information.

Defendants' counsel's declaration indicates, inter alia,

that "I first attempted to meet and confer with Plaintiff's counsel, Jacob Pariyeli, on October 1, 2025 via a telephone call. Plaintiff's counsel's

response was to meet and confer via email only." (Villasenor Decl., ¶ 3.) Defendants' counsel further attests that "[o]n October 24, 2025,

I emailed Defendant's detailed meet and confer letter to Plaintiff's counsel, identifying specific sections within the Complaint that are subject to

demurrer, together with legal support and authorities on which each objection was based, pursuant to Code of Civil Proc. § 430.41.” (Villasenor Decl., ¶ 5.) Defendants’ counsel “received an automated message the same day, at 4:42 pm from plaintiff’s counsel’s firm indicating their involvement in a lengthy matter that would engage their office until January 2026, resulting in limited capacity to deal with other matters. I responded to this email at 4:45 the same day, offering to stipulate to re-timetable the matter of meet and confer and resolution of initial pleadings.” (Villasenor Decl., ¶ 6.) Counsel attests that “[t]here has not been any response from Plaintiff’s counsel to my meet and confer letter nor to my offer to stipulate to a request to the Court for more time to meet and confer or for Plaintiff to voluntarily amend the Complaint. I do not believe the Plaintiff intends to respond to our meet and confer, nor voluntarily amend and therefore Defendants seek the court’s intervention and ruling on Defendants’ demurrer.” (Villasenor Decl., ¶ 7.)

The Court notes that based upon Defendants’ counsel’s declaration, it does not appear that Plaintiff has met and conferred by telephone, video conference or in person. This is not good faith compliance with the code requirement to meet and confer.

Pursuant to Code of Civil Procedure section 430.41, subdivision (a), “[b]efore filing a demurrer pursuant to this chapter, the demurring party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” In addition, “[b]efore filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a).) Such meeting and conferring must be done in good faith by both parties with an effort to try to resolve the issues subject to the demurrer.

In light of the foregoing, the hearing on Defendants’ demurrer and motion to strike is continued to _____, 2026 at 2:00 p.m. in Dept. 508.¿

Plaintiff is ordered to

meet and confer with Defendants within 10 days of the date of this order. If the parties are unable to resolve the pleading issues or if the parties are otherwise unable to meet and confer in good faith, Defendants are to thereafter file and serve a declaration setting forth the efforts to meet and confer in compliance with Code of Civil Procedure section 430.41, subdivision (a)(3) and Code of Civil Procedure section 435.5, subdivision (a)(3) within 15 days of this Order.

IN ADDITION,
THE COURT DID NOT RECEIVE COURTESY COPIES OF THE MOTION TO STRIKE AND THE OPPOSITION THERETO. THE COURT DID RECEIVE COURTESY COPIES OF THE DEMURRER, OPPOSITION AND REPLY AND THE REPLY TO THE MOTION TO STRIKE. AT LEAST 5 DAYS BEFORE ANY HEARING ON THE DEMURRER, THE PARTIES ARE TO DELIVER THE MISSING COURTESY COPIES TO DEPT. 508.

Defendants are ordered to give notice of this Order.

DATED: July
27, 2026

Hon. Teresa A.
Beaudet

Judge, Los
Angeles Superior Court